

		Metals’ Separate Statement in support of its MSJ against Mazella. (See ROA 242, 331, 418.) Similarly, Mazella’s Memorandum of Points and Authorities responds to arguments made by OC Metals in its MSJ against Plaintiff and not OC Metals’ MSJ against Mazella. (See ROA 246, 327, 420.) Lastly, Mazella’s Evidentiary Objections object to declarations of Mari Kurtz, Anne Marie Ellis and Charles Temple. (ROA 431.) Although OC Metals filed a declaration of Temple in support of its MSJ against Plaintiff, no such declaration was filed in support of its MSJ against Mazella. (ROA 249, 336, 431.) Therefore, it appears to the court that Mazella opposed the wrong MSJ. In lieu of ruling on OC Metals MSJ as unopposed, given the public policy favoring disposition on the merits, the court will continue the hearing and allow Mazzella to file a proper opposition to OC Metals’ MSJ. Mazzella to file an opposition no later than 20 days before the continued hearing. OC Metals may file a reply no later than 11 days before the continued hearing. Moving party to give notice.
5	23-01310202 <i>Er vs. Chow</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Quash Subpoena <u>Motion to Quash and for Protective Order</u> Non-Party Xuying Liu’s Motion to Quash and for a Protective Order is DENIED in part and GRANTED in part. Liu is ORDERED to appear for her deposition and produce the requested documents. However, the Court limits the document requests to documents from 2020 to present. Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420(b).) “If the motion for a protective order is denied in whole or in part, the court may order that the deponent provide or permit the discovery

		against which protection was sought on those terms and conditions that are just.” (Code Civ. Proc., § 2025.420(g).) Liu fails to demonstrate good cause to prohibit or limit the conditions of her deposition. Her claim that she has no new information beyond what the parties possess is unpersuasive. Liu provides no information with which the Court may evaluate her claim. Further, the Defendant has the right to test Liu’s assertion. The Court finds the document requests are overbroad as to time, thus, limits each request to documents from 2020 to present. Accordingly, Liu is ordered to appear to her deposition and produce responsive documents. <u>Motion to Compel Deposition</u> Defendant Caesar Global Alliance, Inc.’s Motion to Compel Non-Party Xuying Liu’s Attendance at Deposition is DENIED as MOOT. This Court has already ordered Liu to appear. Additionally, Defendant’s request for sanctions is denied. Defendant filed its motion after there was a pending motion for protective order, thus, there was substantial justification in opposing the motion.
6	25-01477832 <i>Gutierrez vs. Spieckerman</i>	1) Motion for Protective Order 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories Defendants’ Motion for a Protective Order is DENIED as moot. Plaintiff’s Motions to Compel are GRANTED, in part, and DENIED, in part. Defendants Paul Spieckerman and Jessy Trostle move for a protective order that plaintiff’s special interrogatories, set two, (SROG) consisting of 140 interrogatories per defendant, need not be answered in their entirety, and for monetary sanctions against Genaro Gutierrez Jr. and his counsel of record in the amount of \$1,990. Plaintiff Genaro Gutierrez Jr. moves for an order compelling Paul Spieckerman and Jessy Trostle to provide verified responses to the same SROGs, without objection, and for monetary sanctions in the amount of \$7,095 against each defendant and their counsel of record. On 6/11/26, the court continued the hearing on these motions and required the parties to meet and confer further. According to the Joint Statement of Items in Dispute and Parties’ Respective Positions, the parties agreed that defendants need only answer 48 interrogatories, i.e., nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118-121, 130-133, 150-153, and 178-182. The parties also agreed to withdraw their respective requests for monetary sanctions. Therefore, Defendants’ motion for a protective order is moot and therefore denied.